



Blacktown
City Council

Part 5 Returnable Schedules

Request for tender

**MAIN POOL HALL AIR HANDLING UNITS UPGRADE –
BLACKTOWN LEISURE CENTRE STANHOPE**

Contract No: C11/2025

Trim File No: F25/971

Tempest Solutions Projects

1. Instructions

Use the following templates to complete the required Schedules for RFT C11/2025.

Tenderer must provide the requested information in the following returnable schedules using this DOCX file and 'saved as' PDF file for submission.

Failure to complete the returnable schedules or to provide required supporting documents may constitute non-conformance of the tender at Council's absolute discretion.

If the returnable schedules do not have enough space, please provide your information in a separate attachment and reference them in the returnable schedules.

Unless otherwise stated, all documents (including returning schedules and supporting documents) must be 'saved as' PDF files.

Refer to Schedule 10 Fee Structure, the prices must be clear, not open for interpretation and without ambiguity. Zero or blank prices should be replaced by 'included' or 'excluded' as the case maybe with explanation and detailed breakdown of costs. Nevertheless, Council is not obliged to accept any tender offer with 'included' or 'excluded' pay items.

2. Supporting information from tenderers

The tenderer must provide documentary evidence to prove it has the necessary:

- Compliance with the tender,
- Relevant experience, qualifications and licences
- Capacity (including past performance and resources)
- Methodology to undertake works
- Management & financial capacity (with annual financial statements for the last 3 years)
- Quality management (including quality management policy, management plan, forms and checklists)
- WHS management (including completed council's WHS forms appendices 1 to 3, WHS management policy and plan, safe work method statements, checklists & forms)
- Sustainable environmental management (including environmental management policy and plan).
- Copies of certificates for the required third-party accreditations
- Copies of certificates of currency for the required insurances
- Equal employment opportunity and fair employment

We encourage Tenderers to submit any additional relevant information that may assist in assessing tenders.

3. Reference checklist of tender submission

The following checklist helps the tenderer with the preparation of their tender. Please note that it is not exhaustive and each **Tenderer must inform themselves that the tender submission requirements** in reference to the tender documents, attachments and addenda are complete.

Returnable Schedules		included
Schedule 1	Corporate information & Declaration	☒
Schedule 2	Financial capacity	☒
Schedule 3	Confidentiality and Conflict of Interest	☒
Schedule 4	Key personnel	☒
Schedule 5	Insurance	☒
Schedule 6	Previous experience	☒
Schedule 7	Current council clients	☒
Schedule 8	Referees	☒
Schedule 9	Delivery performance	☒
Schedule 10	Fee structure	☒
Schedule 11	Corporate social responsibility	☒
Schedule 12	Sustainability	☒
Schedule 13	EEO & fair employment	☒
Schedule 14	Work, health & safety	☒
Schedule 15	Modern Slavery	☒
Schedule 16	Acknowledgement receipt of addenda and tenderer's declaration	☒
Appendix 1	Council's WHS form WHS051.5	☒
Appendix 2	Council's WHS form WHS051-11	☒
Appendix 3	Subcontractors Statement WHS051-8	☒
Appendix 4	WHS POL 100	☒

Supporting documents

Corporate	Certificate of business registration	☒
Corporate	Certificates of currency for insurances	☒
Capability	CV's for key personnel	☒
Capability	Certificates, licences and tickets for the required qualification / registration	☒
Financial	Tenderer's financial statements for the last three years	☒
Accreditation	Certificates of third-party accreditation	☒
Quality	Quality management policy and plan	☒
Quality	Inspection and testing plans	☒
WHS	Verification documentation on WHS system	☒
WHS	WHS Management Plan, Policy, SWMS, licences, checklists and forms	☒
WHS	Contractor's Chain of Responsibility (CoR) Compliance (if required)	☒
WHS	Verification documentation for CoR compliance (if required)	☒
Sustainability	Environmental policy, environmental management plan	☒
EEO	EEO policy & industrial awards	☒
Other	(Please list here...)	☐

☐ Please check the box if included in the submission

Schedule 1. Corporate Information & Declaration.

Tempest Solutions Projects

RFT C11/2025

Provide details of the Tenderer's company structure, history and director profiles and the following:

Company details			
Trading name	Tempest Solutions Projects Pty Ltd		
Legal name	Tempest Solutions Projects Pty Ltd		
ABN	44 655 597 498	ACN (if applicable)	
Entity type	Mechanical Services Contractor		
Trading address	Unit 25, 14-16 Stanton Road, Seven Hills NSW 2147		
Phone	(02) 9838 9811	Fax	(02) 9838 9855

Contact details			
Name	Gary Deymos		
Position	Engineering Manager		
Address	☒ as above or:		
Phone	(02) 9838 9811	Mobile	0420 244 160
Email	gdeymos@tempestpro.com		

Declaration

Please complete the declaration below. By including this document you are providing an electronic signature for this declaration under the *Electronic Transactions Act* and corresponding state and territory acts.

I (name)	Gary Deymos		
of (address)	Unit 25, 14-16 Stanton Road, Seven Hills NSW 2147		
being (occupation)	Engineering Manager		
Declare that:	I declare that the company listed above: • has authorised me to make this declaration personally and on its behalf ☒ • is solvent and not undergoing any proceedings or negotiations that may lead to an Insolvency Event ☒ • has no actual or potential conflict of interest that would affect how it meets its obligations under any later Contract if the Response succeeds ☒ • accepts the Conditions of tender, Conditions of engagement and any other terms and conditions on the eTender website ☒ • agrees to be bound by this Agreement and to provide the Services in line with it. ☒ I declare that this Response to C11/2025 is: • conforming, complete and meets all requirements, or ☒		

- non-conforming, and proposes an Alternative Response in line with section 1.3 of the Conditions of tender and as detailed at section **Error! Reference source not found.**1 of the Request for Tender. ☐

I am not aware of any conflicts of interest other than those in Part 5 Schedule 3. ☒

I specifically note and accept the:

- professional indemnity insurance requirements (see section Part 5 Schedule 5 and clauses 1.1m)–p) of the Conditions of engagement) ☒
- liability conditions (see section 4.2 of the Conditions of engagement) ☒

I agree that I will:

- keep all information about the Services confidential, including any information I receive or create while providing the Services or executing the Contract ☒
- only use any information as it relates to the Contract ☒
- not remove, photocopy or otherwise reproduce any documents Council has given me access to ☒
- not release or make public any information without Council's written consent, unless the Contract allows otherwise. ☒

I further agree that I will:

- do my best to ensure that I, my Personnel and my subcontractors maintain a good industrial record, including adhering to the relevant awards, codes of industrial conduct, and industry and site agreements now and for the Contract's term ☒
- obtain this undertaking from any subcontractor I ask to use, and give this to Council when requesting its approval. ☒

By completing the fields below and lodging this Response on the eTender website, I am providing an electronic signature in line with *the Electronic Transactions Act 1999* (Cth) and related state and territory Acts.

Schedule 2. Financial Capacity.

Tempest Solutions Projects

RFT C11/2025

Tenderer shall supply particulars regarding financial relationships and records for inspection and verification by Council.

TENDERER'S FINANCIAL INSTITUTION/BANK

Name of institution/bank:	Commonwealth Bank
Address:	The Foundry Level 5, 1 Locomotive Street Eveleigh NSW 2015
Manager:	Mary Phillips
Phone Number:	(02) 7203 1397
Facsimile number:	N/A
Term of engagement:	Since establishment
Overdraft Limit:	Nil

TENDERER'S ACCOUNTANT

Company:	Kelly Partners
Address:	2-8 Brookhollow Avenue Norwest Business Park Baulkham Hills NSW
Contact Person:	Paul Kutcha
Phone Number:	(02) 8852 5400
Facsimile number:	N/A
Term of engagement:	Since establishment

FINANCIAL DETAILS FOR LAST 3 YEARS

Provide documents and information listed below (Financial Statements for the last three years for the Tenderer, including balance sheets, profit and loss statements, an accountant's report and or where existing, auditors' reports.

(Notes: Tenderer's Financial Information will be treated confidentially.)

Annual financial statements for the last 3 years included	Yes ☒ No ☐
	(If No, please provide reason)

Schedule 3. Confidentiality and conflict of interest

Tempest Solutions Projects

RFT C11/2025

Confidentiality

You may only disclose information about the Contract if it is:

- already in the public domain, other than as a result of your own acts or omissions
- required by law, court order, tribunal or another regulatory body, as long as you notify us of the need to disclose this.

Conflict of interest

You must:

- read the following Conflict of interest guidance along with section 2.3 of the Conditions of tender and clauses 1.1q)–s) of the Conditions of engagement
- understand that your obligation to declare any conflict is ongoing
- declare a conflict if one arises at any time.

You must take all reasonable steps to find any actual or potential conflicts, including confirming that there is no family relationship between:

- you or any of your employees who are directly or indirectly involved in preparing or submitting the Response, and
- any Council official or employee who is evaluating the Response or running this Agreement process, or who has confidential information about your Response.

Once a conflict has emerged, you must resolve it. You can either:

- remove the source of the conflict, such as by stopping a person with a conflict from completing this Response or delivering the Services
- make the information public to limit the risk.

Please list all actual or potential conflicts of interest you are aware of in the table below, or write 'None' if you have not identified any.

Conflict of interest	How it will be resolved
None	N/A
Add rows as needed	

Conflict of interest guidance

A conflict of interest:

- is a commercial or professional conflict (real, perceived, expected or possible) that either party identifies about carrying out the Services
- can include obligations and rights under this Agreement, or any other arrangement or agreement. Conflicts of interest can be financial, and may result from holding shares or positions in companies or trusts, owing debts, owning property, or receiving gifts, hospitality or sponsored travel. This list is not exhaustive, and you do not need to hold these financial interests yourself. If a family member or close associate holds them, it is as if you hold them due to the close relationship.

Other conflicts of interest are based on relationships. They often result from relationships in social groups based on a common interest, such as sports or culture, or family, sexual and other relationships.

For more on conflicts of interest, see the [NSW Independent Commission Against Corruption](#) website.

Schedule 4. **Key personnel**

Tempest Solutions Projects

RFT C11/2025

Nominate the names of the management and supervisory principals that will be involved in the provision of goods/services set out in Tender C11/2025 part 2.1 Services. Please provide their CVs as supporting documents to demonstrate their years of relevant experience

Name	Gary Deymos			
Proposed position/capacity	Engineering Manager			
Qualifications/experience in providing requested goods/services	B. Eng. (Mech)			
Period providing goods/services	In current firm	2 years	total	21 years

Name	Peter Monk			
Proposed position/capacity	Construction Manager			
Qualifications/experience in providing requested goods/services	Dip HVAC Eng., Trade Certificate, Cert Project Management			
Period providing goods/services	In current firm	15 years	total	26 years

Name	Hamed Kholghi			
Proposed position/capacity	Senior Project Engineer			
Qualifications/experience in providing requested goods/services	B. Eng (Mech), MIEAust, CPEng, NER			
Period providing goods/services	In current firm	6 years	total	15 years

Name				
Proposed position/capacity				
Qualifications/experience in providing requested goods/services				
Period providing goods/services	In current firm		total	

Schedule 5. **Insurance**

Tempest Solutions Projects

RFT C11/2025

Your Response must include the certificates of currency for the insurance set out in the Conditions of tender and Conditions of engagement, or a guarantee that you will give these to us when we send you a Letter of engagement.

If your Response is successful, you are required under the Contract and this Agreement to effect and maintain the following insurance policies, as a minimum, during the Term and until the date stipulated below:

- workers compensation and related liability insurance in accordance with the requirements of the *Workers Compensation Act 1987* (NSW), until the expiry of the Contract;
- public liability policy of insurance in the amount of at least **[\$20,000,000]** for any one occurrence and unlimited as to the number of occurrences, until the expiry of the Contract;
- professional indemnity policy of insurance in the amount of at least **[\$10,000,000]** for any one occurrence and in the aggregate, until the date that is 7 years after the expiry of the Contract; and
- product liability policy of insurance in the amount of at least **[\$10,000,000]** for any one occurrence and in the aggregate, until the expiry of the Contract.

Provide details of insurance currently held by you and any proposed sub-contractor which would be extended to provide cover for work under the Contract.

1. Copies of all insurance certificates are required to be submitted as part of the tender submission.
2. Tenderers must advise they are prepared to increase their insurance coverage (if necessary), to meet Council's minimum requirements if deemed suitable.

Public Liability			
Insurer	Brooklyn Underwriting		
Policy amount	\$20M		
Policy certificate attached?	☒ Yes ☐ No	Council's minimum level of cover is \$20 million.	

Workers' compensation			
Insurer	iCare		
Policy amount	\$1.2M		
Policy certificate attached?	☒ Yes ☐ No	No. of workers insured:	12

Professional Indemnity			
Insurer	Dual Australia		
Policy amount	\$10M		
Policy certificate attached?	☒ Yes ☐ No	Council's minimum level of cover is \$10 million.	

Product Liability

Insurer

Policy amount

Policy certificate
attached?

☐ Yes ☐ No

Council's minimum level of cover is \$10 million.

Other

Insurer

Policy amount

Policy certificate
attached?

☐ Yes ☐ No

Subcontractors' insurance coverage

Please use the table below to provide current insurance details for any proposed sub-contractor, and note if you have attached the certificate.

Type	Cover amount	Details	Certificate attached?
Public liability	\$20M		☒
Professional indemnity	\$10M		☒
Product liability	\$		☐
Workers compensation	\$1.2M		☒
Other	\$		☐

Liability cap

Your liability cap is stated in the Contract. Our liability cap is equal to the fees we pay you in the 12 months immediately before the date of a claim.

Schedule 6. **Previous experience**

Tempest Solutions Projects

RFT C11/2025

Provide details of previous experience in the required services (including any specific experience with the public sector) as defined in Tender C11/2025 part 2.1 Services.

Total years of experience in providing the required services: 25 years

Years of service for State or local government authorities: 8 years

Please provide details of the recently completed / work in progress projects:

Project 1: [Project title]

Client	Contract amount	Date Commenced	Actual or Estimated Completion Date (Mth/Yr)
Liverpool City Council	\$800,000.00	2020	2020
Description of good / services provided:			
New 4-pipe chiller, FCU's, TEX, KEX for multi-function community centre			

Project 2: [Project title]

Client	Contract amount	Date Commenced	Actual or Estimated Completion Date (Mth/Yr)
Sydney City Council	\$300,000.00	2018	2018
Description of good / services provided:			
New boiler, HEX and pump upgrades for pool heating project			

Project 3: [Project title]

Client	Contract amount	Date Commenced	Actual or Estimated Completion Date (Mth/Yr)
Sydney City Council	\$250,000.00	2017	2017
Description of good / services provided:			
New heating hot water boilers and pumps			

(Please provide at least 3 projects, attach additional table / separate page if necessary.)

Schedule 7. Current council clients

Tempest Solutions Projects

RFT C11/2025

Provide details of any councils to which you are currently providing the goods/services described in Tender C11/2025 part 2.1 Services.

Council name	# years goods/ services provided

Schedule 8. **Referees**

Tempest Solutions Projects

RFT C11/2025

Provide the names of at least 2 referees. Such referees should be senior representatives of other councils or relevant clients.

Referee 1			
Council/Client	Liverpool City Council		
Project			
Years serviced	2020		
Contact name	Liverpool City Council		
Telephone	(02) 8711 7000	Email	lcc@liverpool.nsw.gov.au

Referee 2			
Council/Client	Sydney City Council		
Project			
Years serviced	2017 – 2018		
Contact name			
Telephone	(02) 9265 9333	Email	cityconciierge@cityofsydney.nsw.gov.au

Referee 3			
Council/Client			
Project			
Years serviced			
Contact name			
Telephone		Email	

Referee 4			
Council/Client			
Project			
Years serviced			
Contact name			
Telephone		Email	

Schedule 9. **Service Delivery Performance**

Tempest Solutions Projects

RFT C11/2025

Provide details to demonstrate how the requirements defined Tender C11/2025 part 2.1 Services will be met. In particular, regarding technical requirements and the following:

- (1) Licence and Qualification; **Contractor License attached**
- (2) Principal address of the company; **Unit 25, 14-16 Stanton Road, Seven Hills NSW 2147**
- (3) Company organisation and key management and supervisory staff; **Tempest Org Chart attached**
- (4) Company resources including:
 - (a) Size of workforces, plant and equipment (please complete the attached table with any supporting documents) **10 Project Staff, 4 Admin Staff, 16 Service & Maintenance Staff**
 - (b) Suppliers and subcontractors (please complete the attached table and provide the recent history of their participation in tenderer's projects) **Attached**
- (5) Quality management plan, inspection & testing plan; **Attached**
- (6) Certificates of third party accreditation on quality management, work health and safety and environmental management; **ISO 45001, 9001 and 14001 accredited. Iso certificates attached**
- (7) Sample reports, checklists, etc. **Can be provided upon request**
- (8) Methodology and procedures; **Can be provided upon request**
- (9) Any other supporting information such as appreciation letters and completed job photos to demonstrate good past performance. **Can be provided upon request**
- (10) Outline the proposed schedule, which should include:
required dates
milestones

Proposed Construction Program attached

Milestone	Start Date	End Date
Site establishment, safety and access preparation	30.09.2025	06.10.2025
Removal of redundant equipment (fans, exchangers etc.)	02.02.2026	09.02.2026
Pouring and curing of concrete plinths for chillers	13.10.2025	20.10.2025
Delivery and installation of new chillers	30.09.2025	09.02.2026
AHU 1 & 3 internal plenum modification	09.02.2026	16.02.2026
Installation of coils, drift eliminators, and sumps	09.02.2026	16.02.2026
Supply & install EC fans and new access panels	09.02.2026	16.02.2026
Pipework and ductwork modifications	09.02.2026	16.02.2026
Electrical upgrades and cabling works	09.02.2026	16.02.2026
BMS integration and BACnet configuration	16.02.2026	23.02.2026
Testing and commissioning	23.02.2026	02.03.2026

Handover, documentation, and practical completion	09.03.2026	16.03.2026
12-month defect liability and maintenance period begins	16.03.2026	15.03.2027

- (11) The following milestones are not subject to negotiation. You must confirm you can meet these in your Response:

Start of operation will be **25 Aug 2025**.

Tenderer must provide in the proposed schedule how they shall minimize disruption to Council's current operations.

	Tender Response	Supporting documentation / samples attached where applicable (Y/N)
Explain how you will ensure timely delivery of services to meet the required completion date. This is a critical factor for the evaluation of your offer.	Answers to Councils questions: Preliminary Construction Program has been drafted up (see attached)	Y
Confirm the origin from which you will be purchasing the main equipment. This information is essential for the evaluation of your offer.	Chiller and pumps to be purchased from Australian based and ASIC registered companies	Y
Is the current allocated space sufficient to accommodate the proposed reverse-cycle air-cooled modular chiller system and associated components? If not, outline the necessary modifications and provide justifications for each, considering structural, electrical, ventilation, and accessibility requirements.	Yes.	N/A
Confirm that your quoted offer includes a catalogue and technical specification sheets for all proposed equipment. This is a mandatory requirement for your offer to be considered valid.	New chiller and pump specification sheets attached	Y
Confirm that your quoted offer includes a draft diagram detailing the layout, fit-out arrangement, connections, and any required modification works. This is a mandatory requirement for your offer to be considered valid.	Shop drawings have been included in our quote	Will be provided once Contract has been awarded
Confirm that your quoted offer includes details on the installation crew, including skills and experience. This is a mandatory requirement for your offer to be considered valid.	Key personnel details provided in Returnable Schedules. Further information can be provided upon request	Further info can be provided upon request

Confirm that your quoted offer includes product warranty details, including terms and any maintenance or service fees. This is a mandatory requirement for your offer to be considered valid.	Warranty and maintenance details included in our quote	Equipment warranties can be provided upon request
Provide a list of subcontractors, their role in the project, and their documents and historical performance, if external subcontractors are used.	Plumber – Motive Plumbing Pty Ltd Electrician – GSTEC Sheetmetal – Air Tac Services Pty Ltd Craneage – Borger Cranes Pty Ltd Service – Tempest Solutions Services Pty Ltd	Subcontractor licenses can be provided upon request

Schedule 10. Fee structure

Tempest Solutions Projects

RFT C11/2025

The prices you offer below must be:

- in Australian dollars
- the same regardless of the mode of payment
- quoted on a **lump sum basis**

The prices you offer must also:

- be available for us to accept during the Validity Period, even if we may have negotiated the Response in the meantime
- take into account our provisions around liability, indemnity and risk.

Unless you indicate otherwise, prices must also include:

- Goods and Services Tax (GST) with a breakdown shown clearly on invoices
- all applicable levies, duties, taxes and charges
- any out-of-pocket expenses, including travel and accommodation within NSW.

Council will not accept any fees or charges other than the ones in your Response.

Table 1: Schedule of Performance –Heat Pump Chillers

Description	Heat Pump Chiller Specification	Alternative Spec (Tenderer to Provide if Deviating from Specs)
Type	Water source heat pump chiller	
Refrigerant	R410a	
Compressor type and number	Four (4) off scroll compressors	
Compressor starting	'Soft' start with phase loss sensing	
Chilled water flow rate, L/s	5.82	
Chilled water ent/lvg temperature, °C	12.2/5.6 °C	
Ambient temperature, °C(db)	35 °C	
Evaporator Fluid Type	Fresh Water	
Heating capacity, kW _r	212	
Condenser water flow rate, L/s	10.2	
Condenser water ent/lvg temperature, °C	45/50 °C	
Ambient temperature, °C(db)	7 °C	
Evaporator Fluid Type	Fresh Water	
Control	Must be fitted with BACnet over IP gateway	
In Built Condenser and Evaporator Primary Pumps & VSDs	Yes	
Basis of Design	Carrier 61WG 190A	
Quantity	2	

Table 2: Pricing Schedule – AHU 1 & 3 Refurbishments

Item No.	Service Details	Price excl GST	GST	Price incl GST
1.0	Removal and disposal of redundant services including fans and exchangers	Included in item 6	\$-	\$-
2.0	Supply, deliver and install (2) water-cooled chillers with inbuilt pumps and BACnet HLI card	\$174,400.00	\$17,440.00	\$191,840.00
3.0	Supply, deliver and install (8) EC fans, doors, panels, louvres	\$20,900.00	\$2,090.00	\$22,990.00
4.0	Supply and install coils: evaporator (4), condenser (2), run-around (4), and pumps (2) and filters	\$93,700.00	\$9,370.00	\$103,070.00
5.0	Supply and install insulated copper pipes & fittings with metal cladding and all associated valves	\$120,800.00	\$12,080.00	\$132,880.00
6.0	Modify, supply and install exhaust ductwork	\$49,100.00	\$4,910.00	\$54,010.00
7.0	Modify and make good AHUs' internal plenum, rust treatment, patching	Included in item 6	\$-	\$-
8.0	All electrical works in Plantroom 1 for AHU 1 & 3 upgrades	\$96,900.00	\$9,690.00	\$106,590.00
9.0	Project preliminaries and documentation	\$2,800.00	\$280.00	\$3,080.00
10.0	Maintenance for twelve months	\$2,200.00	\$220.00	\$2,420.00
11.0	Testing & commissioning	\$34,300.00	\$3,430.00	\$37,730.00
12.0	Any other items not included above (list below)			
	Water treatment	\$2,400.00	\$240.00	\$2,640.00
	Expansion tanks and dosing pots	\$5,000.00	\$500.00	\$5,500.00
Total		\$602,500.00	\$60,250.00	\$662,750.00

Option costs:

Option 1: Supply of 22x Gj Walker BCA compliant selection coils would cost \$65,000 extra ex GST.

Option 2: PC Sum for the replacement of MSSB-2 would cost \$26,000 extra ex GST.

Option 3: Selecting 2x Grundfos circulation pump model CR 32-1-1 Vertical Multistage Pump instead of Baker would save \$2,000.

Option 4: Supply and install of 25mm seismic anti-vibration Spring mounts for chillers would cost \$4,900 extra ex GST.

Schedule 11. Corporate social responsibility

Tempest Solutions Projects

RFT C11/2025

In a maximum of 1 paragraph only, provide details of the company's Corporate Social Responsibility (CSR) Plan or Policy, an example of 1 initiative undertaken within the last 3 years, or a project that provided community benefit.

Tempest Solutions accepts that it must work to preserve the environmental sustainability of the planet, at all levels of its operations – in its own practice, as a participant in a community of practice, and as a participant in the Australian social discourse. Tempest Solutions aspires to minimise its impact on our environment and maximise the effective use of resources. We strive to achieve this by increasing communication and awareness of our efforts in accordance with this policy and fostering responsible environmental behaviour amongst staff, volunteers, and users at all levels.

Schedule 12. Qualitative (Sustainability)

Tempest Solutions Projects

RFT C11/2025

Explain your understanding of sustainability and provide examples of how you support sustainability within your organisation?

Sustainability generally refers to business activities that don't negatively impact the environment, society or communities. The Tempest Solutions Group are ISO 45001, 14001 and 9001 accredited and regularly carry out Sustainability Audits as part of our ongoing community commitment and professional development. Details of our Sustainability Audit Checklists can be provided upon request.

Schedule 13. **Qualitative (EEO & Fair employment)**

Tempest Solutions Projects

RFT C11/2025

Complete the following table to provide detail of your enterprise's management and commitment to sound employee and industrial relations practices.

Employee and workplace policies

Does your enterprise have employee or workplace policies on any of the following?

		Copy of policy attached	Copy of policy can be found at:
☐	Recruitment	☒ Yes ☐ No	TSP WHSQ Management Plan
☐	Training and development	☒ Yes ☐ No	TSP WHSQ Management Plan
☐	Equal employment opportunity	☒ Yes ☐ No	TSP WHSQ Management Plan
☐	Anti-discrimination	☒ Yes ☐ No	TSP WHSQ Management Plan
☐	Unionism	☐ Yes ☐ No	N/A
☐	Consultation	☒ Yes ☐ No	TSP WHSQ Management Plan
☐	Dispute resolution	☒ Yes ☐ No	TSP WHSQ Management Plan
☐	Other	☐ Yes ☐ No	

Has the organisation nominated a management representative to oversight the implementation of these policies?

☒ Yes ☐ No

If yes, provide contact details:

Name

Jackie Sakr

Phone/email

9838 9811 / admin@tempestair.com.au

Payment of wages and superannuation

Did the organisation cause any breach of legislation regarding payment of wages and superannuation?

☐ Yes ☒ No

If yes, please provide details of the breach, outcomes and any rectifications or improvements made to prevent recurrence.

Aboriginal and Torres Strait Islanders

Does the organisation have a specific policy on employing persons of Aboriginal & Torres Strait Islander decent?

☒ Yes ☐ No

If yes, provide details of how many employees and their history employment.

1 employee 11 years with Tempest

1 apprnice 2 years with Tempest

How does the organisation demonstrate commitment and capacity to create and extend opportunities for Aboriginal people and enterprises through this contract, which is in line with the principles of 'Engaging with Local Aboriginal Communities' from NSW Dept of Local Government?

Through the employment of in house personnel and the engaging of subcontract labour with Aboriginal & Torres Strait Islander decent

Apprenticeships and traineeships

Does the organisation offer apprenticeships or traineeships?

☒ Yes ☐ No

If yes, provide details of how many and at what level each trainee or apprentice is at.

Ryan 4th year apprentice
Micallef

Evan 3rd year apprentice
Dawson

Barron 2nd year apprentice
Wortley

Alex 1st year apprentice
Godwin

Other

Provide any other details in relation to skills which you consider to be relevant in support of this contract.

N/A

Industrial relations undertaking

This undertaking must be completed by all tenderers and lodged as part of their proposal. Any Proposal in which this form is not completed may be regarded as non-conforming.

I (name)

Gary Deymos

of (address)

Unit 25, 14-16 Stanton Road, Seven Hills NSW 2147

do hereby
undertake that:

- ☒ Now and for the duration of the Contract to use its best endeavours to ensure that a good industrial record is maintained.
- ☒ Best endeavours must be used to ensure all subcontractors engaged in the performance of the work under the Contract maintain a good industrial record.
- ☒ Where consent is sought under the Contract for the engagement of a sub-contractor to provide goods or services to Council, a similar undertaking must be obtained from the sub-contractor and submitted with the Respondent's request for consent.
- ☒ Adherence to the required Codes of Industrial Conduct at all times now and in the future will be the measure by which a "good industrial record" is determined for the purposes of the undertaking.

Schedule 14. **Work, health and safety**

Tempest Solutions Projects

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Blacktown City Council WHS Policy 100 is attached, by submitting tender submissions, the tenderer is deemed to have read and agreed to comply with Council's WHS Policy.

The following documents in Appendices 1 to 3 are required to be completed and submitted with the tender submission. **Failure to attach the completed WHS forms may cause your submission non-compliant and will not be considered:**

Document #	Document name
WHS051.5	Contractor WHS Code of Conduct
WHS051.11	Contractor Scope of Works & Requirements
WHS051.8	Subcontractor Statement
WHSPOL 100	Work Health and Safety (information only)

The following documentation that verifies the application of your WHS processes must also be submitted with the tender: (check the following box when it is attached)

Corporate	
WHS Manual, policy and procedures	☒
WHS responsibilities allocation table / chart	☒
WHS consultation statement	☒
Sample completed WHS inspection checklist and records	☒
Sample completed hazard report/corrective action records	☒
Injuries and Incidents	
Sample completed register of injuries	☒
Sample completed incident report	☒
WHS penalty notices, improvement notices, prohibition notices or prosecutions issued to your organisation or your subcontractors by SafeWork NSW (if any in the last 3 years)	☒
General WHS Training	
Sample WHS induction training record	☒
Sample WHS consultation training records	☒
Sample First Aid training record	☒
Confined space entry training records (if any)	☐
Plant operator training and certification records (if any)	☒
Sample safe operating procedures training record	☒
Sample training and induction programs schedule and records	☒
General Risk Assessment	
Risk assessments for the work tasks to be done	☒
Risk assessments of plant and equipment	☒
Safe work method statements and / or specific safety instructions	☒
Hazardous substances register	☒
Safety data sheets and risk assessments for any hazardous chemicals	☒
Maintenance inspection and test records for plant and equipment	☒
Sample procedures, plans and forms relating to permit to work systems (if any)	☒

Construction Work Risk Assessments

Site-specific or Generic Work Health and Safety Management Plan for recent similar project. *A suitable plan would include safe work method statements and any worksite safety rules and a statement of worksite WHS responsibilities. A suitable plan would also address the arrangements for risk management, training (including WHS induction training) and incident management.*

☒

Verification / Safety Audit

Latest WHS audits or inspection report by SafeWork NSW or 3rd party auditor

☒

Construction Work WHS Training

Sample completed general WHS induction and work activity record

☒

Sample completed site specific WHS induction record

☒

Chain of Responsibility (CoR) Compliance (Check as appropriate)

Policies and Registers

Does the organisation have a CoR Policy with supporting procedures?

Yes ☒

Attached ☒

Does the organisation have a CoR Risk Register?

Yes ☒

Attached ☒

Risk Management and Assessment

Does the organisation have a workplace hazard / risk assessment register that demonstrates an effective control and review process pertaining to site and transport task risks?

Yes ☒

Attached ☒

Does the Risk Register identify road transport risks?

Yes ☐

Does the organisation keep safety key performance indicators

Yes ☐

Attached ☐

Training

Does the organisation keep a Training Register?

Yes ☒

Attached ☒

Are drivers given information relating to workplace hazards at loading and delivery points?

Yes ☐

Attached ☐

Records

Is there a fleet register kept for all operating vehicles >4.5t GVM?

Yes ☐

Attached ☐

Are Maintenance records available for all current fleet?

Yes ☒

Attached ☐

Are records kept of all drivers completed National work diary sheets or Daily work sheets?
Please attach a sample.

Yes ☐

Attached ☐

Accreditation and Auditing

Are sub-contractors or contract drivers subject to a pre-engagement audit to provide assurance that they have effective management systems (fatigue, speed, mass etc.) in place?

Yes ☒

Attached ☐

Schedule 15. Modern Slavery

Supplier Questionnaire – Identifying modern slavery risks

This is a confidential Questionnaire for suppliers of goods and services to Blacktown City Council. Our suppliers are asked to complete the Questionnaire honestly and with as much detail as possible. Completed Questionnaires will be confidential and will not be shared beyond Blacktown City Council. We are requesting this information so that we can better detect and manage Modern Slavery risks associated with our supply chain.

Contact details – Blacktown City Council	
Business name	Blacktown City Council
Contact person	Mohsen Mousavi
Contact email	mohsen.mousavi@blacktown.nsw.gov.au
Contact phone	0447485842

Please complete the below questions in as much detail as possible. Please return the completed Questionnaire to the nominated contact above.

Contact details - Supplier	
Organisation name	Tempest Solutions Projects Pty Ltd
Organisation address	Unit 25, 14-16 Stanton Road, Seven Hills NSW 2147
Australian Business Number	44 655 597 498
Parent company (if applicable)	N/A
Contact person	Gary Deymos
Contact email	gdeymos@tempestpro.com
Contact phone	(02) 9838 9811
Date of Questionnaire completion	18/06/25
I confirm that the information provided/answers given, are true and correct to my knowledge at the time of completing this survey.	
☒ Yes	

Questions	
Is your organisation required to report under the <i>Modern Slavery Act (Cth) 2018</i> ? If so, please attach a copy of your modern slavery statement(s) or provide details of statement preparation activities undertaken so far.	☒ Yes ☐ No
Please provide details here, if relevant.	
Modern Slavery Policy attached	
Does your organisation have any policies relating to managing the risks generally associated with Human Rights, Corporate Social Responsibility, Ethical Sourcing, Fair Employment Practices and fair payments to subcontractors and employee's?	☒ Yes ☐ No
If yes, please provide details.	
Modern Slavery Policy attached	

Does your organisation undertake activities to detect and manage modern slavery risks within your organisation?	☒ Yes ☐ No
If yes, please provide details. Modern Slavery Policy attached	
Does your organisation undertake activities to detect and manage modern slavery risks within your supply chain?	☒ Yes ☐ No
If yes, please provide details. Modern Slavery Policy attached	
Has your organisation formally undertaken a modern slavery risk assessment for your supply chain?	☐ Yes ☒ No
If yes, please provide details.	
Does your organisation provide or give access to modern slavery related training for staff and/or your supply chain?	☒ Yes ☐ No
If yes, please provide details. Modern Slavery Policy attached	
Which country(ies) are the products you provide manufactured in? Include countries where raw materials and any components are sourced (if known).	
Please provide details here. Italy, China, Thailand	

Schedule 16. Acknowledgement receipt of Addenda and Tenderer's Declaration

Tempest Solutions Projects

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Tenderer is to acknowledge the receipt of the following addenda during the tender period. This Tender has been prepared having regard to the addenda listed below:

Addendum No.	Brief Description (e.g. Specification Page No, Clause No, Schedule No)	Date Received
1	RFT Document Changes	06/06/2025

Declaration

Please complete the declaration below. By including this document you are providing an electronic signature for this declaration under the *Electronic Transactions Act* and corresponding state and territory acts.

I (name) Gary Deymos

of (tenderer) Tempest Solutions Projects Pty Ltd

being (occupation) Engineering Manager

Declare that:

- ☒ The Tenderer offers to supply the requirement, described in RFT issued by Blacktown City Council, in accordance with the Pricing Schedule contained in its Tender.
- ☒ The Tenderer agrees to comply with its obligations under the Tender and acknowledges and agrees with Blacktown City Council's rights under the Tender.
- ☒ The Tenderer confirms its capacity to bid on the requirement in the Tender and that there is no restriction under any relevant law to prevent it from bidding.
- ☒ The Tenderer consents to Blacktown City Council undertaking checks in accordance with this Tender.
- ☒ The Tender remains open for acceptance for 120 Days from the Closing Time in accordance with the Tender.